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SRI LANKA

The sixteen-year conflict between the Sri Lankan government and the Liberation Tigers of Tamil Eelam (LTTE) continued to produce human rights violations on both sides. On July 29, the international human rights movement lost one of its most respected and beloved leaders when a suspected LTTE suicide bomber assassinated Neelan Tiruchelvam, founder of both the International Centre for Ethnic Studies and the Law and Society Trust, a human rights research and advocacy organization. Tiruchelvam, a Tamil member of parliament, had angered the LTTE by proposing an alternative to a separate Tamil state, namely a plan for devolution of power to regional councils set up in part along ethnic lines.

Human Rights Developments

The war was increasingly complicated by paramilitary actors, often working alongside the army as auxiliary forces, but sometimes at odds with them and with each other. Armed clashes between rival groups claimed civilian lives. Impunity remained a critical problem, with few prosecutions for human rights violations, and torture prevalent both in the context of armed conflict and in day-to-day policing. Discrimination against Tamil civilians by members of the security forces attempting to root out the LTTE continued throughout the country and especially in the capital city of Colombo and in army-controlled areas of the north and east.

The war in the north continued to claim civilian lives and generated thousands of new internally displaced people and a smaller number of external refugees as people fled military shelling, clashes between the army and the LTTE, food shortages, and LTTE recruitment of children and adults for military service. On September 15 more than twenty civilians were reported killed and some forty injured in an air force bombing of the Puthukkudiyiruppu market in the northern district of Mullaithivu; houses and buildings nearby were also destroyed. Three days later a suspected LTTE attack on Sinhalese villagers in the east killed more than fifty.

The army redoubled its efforts during the year to control the strategically important A9 highway, linking the Jaffna Peninsula in the far north to Vavuniya town. In early December 1998 the army launched a new offensive and advanced northeast-ward into the area around Oddusuddan, displacing some 12,000 people, some forcibly. In March 1999, the army began the first phase of Operation Rana Gosa (Battle Cry), and fighting shifted to the southwestern Vanni region of northern Sri Lanka, where the army made substantial territorial gains; at times appearing to move in virtually uncontested. In April, the army overran Madhu camp, an open relief facility established by the U.N. High Commissioner for Refugees (UNHCR). The camp housed some 10,000 internally displaced persons (IDPs), some of whom had been there for almost a decade. Half of the camp's residents—those from areas under army control—were sent home; those from regions still under LTTE control were moved to welfare centers in other areas. International relief agencies criticized the eviction, saying that it led to overcrowding of existing welfare camps in the north.

Military operations were marked by repeated closures of access across the forward defense lines, resulting in the disruption of delivery of food, medicine and humanitarian relief to the civilian population of the Vanni. One closure that began on June 26 lasted for more than six weeks, until the LTTE and the army reached a mutually acceptable arrangement to open the supply line. The

functioning of humanitarian organizations was badly hampered and conditions for civilians, especially IDPs, deteriorated sharply throughout July.

According to U.N. estimates, about a dozen people suffered injuries from landmines each month on the Jaffna peninsula. Both the government and the LTTE promised they would not remine areas cleared by U.N. mine clearance teams. The government, however, refused to sign the Ottawa Treaty banning land mines, citing security concerns imposed by the LTTE.

Conflict-related deaths and injuries of civilians were also reported in eastern Sri Lanka.

The security forces' use of home guards and armed ex-militant Tamil groups as auxiliary units to aid in military operations continued to draw criticism from human rights defenders. These groups have engaged in illegal detention, murder, abduction, extortion, assault, torture, forced conscription, and forced eviction. In 1999, fighting between two of these groups, the People's Liberation Organization for Tamil Eelam (PLOTE) and Tamil Eelam Liberation Organization (TELO) also claimed civilian lives.

Large-scale arbitrary arrests of Tamils based almost solely on their ethnicity continued in many parts of the country. In the north and east, residents complained of discrimination at checkpoints, routine beatings, torture, public humiliation of persons detained during searches, and of detainees being used for forced labor by the army and Special Task Force.

The LTTE was also blamed for deaths of civilians and other noncombatants and intimidation of political opponents. Several members of Neelan Tiruchelvam's party, the Tamil United Liberation Front (TULF), reported receiving threatening letters or telephone calls from the LTTE or LTTE front organizations. The LTTE also targeted members of armed Tamil groups; on September 2, 1999, Manikkadasan, PLOTE's vice president and military wing leader, was killed along with two others in a claymore mine bombing of a PLOTE camp in Vavuniya.

On September 18, apparently in retaliation for the deaths of civilians killed in air force strikes on Puthukudiyiruppu three days earlier, suspected LTTE members hacked to death some forty-eight Sinhalese villagers and shot six others in attacks on three villages in eastern Sri Lanka. The killings sparked large anti-LTTE demonstrations in Colombo.

Increased recruitment of children was also reported from LTTE-controlled areas of the country. School buildings were the site of recruitment drives aimed at teenagers, and in April the LTTE began a practice of enlisting all residents in some areas of the north for military training as a "civilian defense force." Older residents were reportedly directed to act as guards for their villages, while younger members were sent to the front lines to aid LTTE combat units. Residents attempting to flee these areas said they were leaving, among other things, because of LTTE recruitment.

Official efforts continued to account for the tens of thousands of persons who "disappeared" at the hands of the security forces since the conflict began. In January, the Presidential Commission on Disappearances submitted an interim report, based on investigations since June 1998. The commission received some 10,135 complaints, mostly from the Central Province, and 460 complaints from Jaffna district. At the beginning of 1999, there were more than 7,500 complaints awaiting inquiry, and the term of the Commission was extended.

The report provided details on about one hundred court cases filed against perpetrators of "disappearances." According to officials of the Relief and Rehabilitation Authority, more than 18,000 people applied for death certificates for "disappeared" relatives; death certificates are a necessary prerequisite to obtaining government compensation.

Almost a year after a former soldier named Somaratne Rajapakse alleged that the army had buried "disappeared" Tamil civilians in mass graves near Jaffna town, exhumation began in June on the first site. Rajapakse, sentenced to death in June 1998 along with six other soldiers for the 1996 rape and murder of a Jaffna teenager named Krishanthi, told a Colombo court after his conviction that he knew the whereabouts of graves of hundreds of Tamil youths killed by the army after it took Jaffna in 1996. The first grave identified by Rajapakse contained two male skeletons. An investigating team that

included Sri Lankan and foreign forensic experts and human rights observers said the remains showed signs of physical assault and murder. The victims, one with his hands tied with rope and the other blind-folded, were identified as two men in their twenties who "disappeared" in 1996.

In August, Rajapakse and other ex-soldiers convicted with him identified twenty-four additional grave sites around Chemmani village near Jaffna town which they told a Jaffna district court contained eighty to one hundred bodies of persons killed and buried by the army near Jaffna town in 1996 and 1997. Exhumations resumed on September 6, and within days more bodies had been uncovered.

Rajapakse complained in August that he and his family had received death threats, and that police investigators who questioned him about his allegations of mass graves failed to record the names of army officials who he said were involved.

Prosecutions of abuses by security forces remained rare, but several notable cases did reach the courts. On July 20 a Mannar court ordered the detention of two soldiers from Pallimunai army detachment accused of raping and murdering Ida Hamilitta, a twenty-one-year-old former LTTE member who had surrendered to the army two months before. A witness told the court he had tried to report the killing to the Pallimunai police, but that they had refused to record his statement and warned him to keep quiet. The Mannar medical officer, however, gave graphic testimony about the results of the woman's post-mortem, and a determined magistrate ensured the prosecution of those responsible.

No progress was made in reopening the notorious "Bolgoda Lake" case which implicated Special Task Force (STF) commandos in the 1995 murders of twenty-three Tamil youths whose bodies were found floating in bodies of water near Colombo.

But in another notorious case in which twenty-five people, including twenty-four students between the ages of fifteen and seventeen, "disappeared" from Sevana army camp, Embilipitiya, Ratnapura district between late 1989 and early 1990, there was some justice done. Six members of the Sri Lankan security forces and a high school principal were sentenced to ten years' imprisonment after having been found guilty of abduction with intent to murder and wrongful confinement. The court was unable to prove murder. The judgment was the first to address the enormous number of "disappearances" linked to the state's counterinsurgency campaigns against suspected supporters of the Janatha Vimukti Peramuna (JVP), a Sinhalese nationalist insurgency, in the late 1980s.

Independent press coverage of the war remained difficult, and political reporting on topics other than the war often sparked threats and physical attacks. In mid-July, when police in Colombo fired rubber bullets, tear gas and water cannons to disperse a crowd of supporters of the United Nationalist Party, the main opposition party, unidentified men in plainclothes assaulted protestors, wounding at least thirty people, including ten journalists. The Free Media Movement denounced the assaults as "the worst attack on the media in recent history," and said that journalists had identified several attackers to be from the presidential security division (PSD). The demonstrators were protesting the failure of the People's Alliance government to keep election promises including the abolition of the powerful executive presidency. On July 21 journalists held a second demonstration in Colombo to protest the assaults.

In late August, some two hundred people, including academics and students, journalists and local businessmen attended a demonstration organized by the North Sri Lanka Journalists' Association in Jaffna town protesting the August 21 grenade attack on the office of a local Tamil newspaper, Uthayan. The North Sri Lanka Journalists' Association, which sent a memorandum to President Kumaratunge, said the attack was an effort to discourage the press from exposing incidents of extortion and corruption. They appealed to the Sri Lankan government to carry out an impartial inquiry.

On September 7, Rohana Kumara, the editor of Satana (Battle), a pro-UNP newspaper, was killed by unidentified gunmen in a Colombo suburb. He was shot on his way home in a taxi after receiving a call that his house was being attacked. Members of parliament for the UNP blamed the ruling party for the killing and demanded an immediate investigation.

Defending Human Rights

Human rights defenders continued to play a critical role in demanding accountability for human rights abuses and working for an end to political violence in Sri Lanka. But these activities did not come without substantial risks. The greatest blow to human rights advocacy was the killing of Neelan Tiruchelvam. Seven others were wounded in the attack, including five policemen. The three young Tamil men arrested in connection with Tiruchelvam's murder were reportedly severely tortured in police custody in Colombo.

In December 1998, a candlelight vigil organized by The Missing Persons Guardian Association (MPGA) in Jaffna, an organization of relatives of the "disappeared," was held opposite the Human Rights Commission office in Jaffna to protest "disappearances" in the area, and the slow pace of progress in investigating the allegations of mass graves near Chemmani.

Also in December, the Citizens Committee of the Vanni asked the International Committee of the Red Cross (ICRC) in Mallavi to intervene with the army to prevent attacks on displaced civilians. It noted in particular a December 21, 1998 attack which killed five civilians who were traveling to their paddy fields in the area.

In January the Centre for Monitoring Election Violence, INFORM, and other human rights organizations protested reports of widespread violence, vote-rigging and voter intimidation during the Northwest Provincial Council Elections.

In March the Civil Rights Movement of Sri Lanka and other NGOs raised public concerns regarding an announcement that the government would no longer automatically commute death sentences when they came before the president, a move many feared would lead to a de facto reinstatement of the death penalty.

The Role of the International Community

International attention to Sri Lanka focused on continuing support for humanitarian efforts to mitigate the worst effects of the war and accountability for past abuses. The killing of Neelan Tiruchelvam sparked widespread international condemnation, including from United Nations Secretary-General Kofi Annan who denounced the murder as an "act of terrorism."

During an official visit to Jaffna in December 1998, Ilkka Uusitalo, head of the European Commission's Delegation to Sri Lanka, raised concerns with the members of the commission about arbitrary arrest of civilians by army and police on the peninsula and human rights violations by paramilitary Tamil groups operating alongside the army during a meeting with the Human Rights Commission in Jaffna. The Ambassador also inquired about the treatment of detainees by the security forces and the progress of investigations into allegations of mass graves at Chemmani.

A ten-member team of experts from the Zimbabwean mine defusing company Mine Tech operating under contract to the United Nations arrived in the Jaffna peninsula in early July to launch a two-and-a-half-year landmine clearing project assisted by the United Nations Development Program (UNDP). The project, partially funded by the Netherlands and Australia, was aimed at aiding the resettlement of thousands of displaced civilians. The U.N. also undertook a public mine awareness program.

In September, the United States government announced that it had donated U.S. \$1.3 million to the UNHCR to assist the agency's efforts on behalf of Sri Lanka's internally displaced population.

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